

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1911

By: Alonso-Sandoval

AS INTRODUCED

An Act relating to mental health; providing definitions; creating the 988 Suicide and Crisis Lifeline System; providing for administrative structure; providing for evaluation; providing for workforce retention; establishing a trust fund; creating a telecommunication fee; directing maximization of federal funding; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 12-200 of Title 43A, unless there is created a duplication in numbering, reads as follows:

As used in this section:

1. "911" means any telephone system whereby telephone subscribers may utilize a three-digit number (9-1-1) for reporting an emergency to the appropriate public agency providing law enforcement, fire, medical or other emergency services, including ancillary communications systems and personnel necessary to pass the reported emergency to the appropriate emergency service and which

1 the wireless service provider is required to provide pursuant to the
2 Federal Communications Commission Order 94-102, 961 Federal Register
3 40348;

4 2. "988" means the universal telephone number within the United
5 States designated by the Federal Communications Commission for the
6 purpose of the National Suicide Prevention Lifeline program
7 operating through the 988 Suicide and Crisis Lifeline (988
8 Lifeline), or its successor maintained by the Assistant Secretary
9 for Mental Health and Substance Use under Section 520E-3 of the
10 Public Health Service Act, 42 U.S.C. 290bb-36c;

11 3. "988 administrator" means the administrator of the National
12 988 Suicide and Crisis Lifeline system maintained by the Assistant
13 Secretary for Mental Health and Substance Use under Section 520E-3
14 of the Public Health Service Act. The administrator oversees the
15 administration of the 988 Lifeline system with expectations of
16 clinical, technical and operational performance. The Lifeline
17 administrator is responsible for leadership and coordination of 200-
18 plus individual state and locally funded crisis contact centers
19 across the country. Each center is responsible for abiding by a
20 series of requirements that include, but are not limited to, an
21 accreditation process, insurance, a formal agreement with the
22 Lifeline administrator, and a center liaison;

23 4. "988 contact" means a communication with the 988 Suicide and
24 Crisis Lifeline system within the United States or its successor via

1 modalities offered, including call, chat, text or a transfer from
2 peer-operated warmlines, other behavioral health crisis hotlines and
3 emotional support lines;

4 5. "988 fee" means the surcharge assessed on commercial
5 landline, mobile service, prepaid wireless voice service, and
6 interconnected voice over Internet protocol (VoIP) service lines
7 created under Section 4 of this act authority for communication law,
8 regulation, and technological innovation;

9 6. "988 Lifeline Crisis Centers" are a national network of
10 local crisis centers that provide free and confidential emotional
11 support to people in suicidal crisis, behavioral health crisis, or
12 emotional distress twenty-four (24) hours a day, seven (7) days a
13 week in the United States. It is the national Suicide Prevention
14 and Mental Health Crisis Hotline system maintained by the Assistant
15 Secretary for Mental Health and Substance Use under Section 520E-3
16 of the Public Health Service Act (42 U.S.C. 290bb-36c);

17 7. "988 Trust Fund" means the 988 Suicide and Crisis Lifeline
18 program fund created under Section 3 of this act;

19 8. "Behavioral health crisis services" are intensive services
20 that are provided to address or prevent behavioral health symptoms,
21 situations, or events that may negatively impact an individual's
22 ability to function within his or her current family or caregiver
23 and living situation, school, workplace, or community. Behavioral
24 health crisis services are for anyone, anywhere, and at any time and

1 can be provided in a variety of settings, including via text or
2 telephone, face-to-face at an individual's home, or in the
3 community;

4 9. "Behavioral health crisis system" is an organized set of
5 structures, processes, and services in place to meet all types of
6 urgent and emerging mental health and substance use needs in a
7 defined population or community, effectively and efficiently.
8 Essential elements of a behavioral health crisis system include 988
9 crisis lines that accept all calls and texts, and provide support
10 and referrals based on the needs of the individual or family member
11 or caregiver; mobile crisis teams that respond to the location of
12 need in the community; and crisis stabilization facilities that
13 serve everyone who enters their doors from all referral sources.

14 Comprehensive behavioral health crisis systems:

- 15 a. address recovery needs, significant use of peers, and
16 trauma-informed care,
- 17 b. provide "suicide safer" care,
- 18 c. ensure safety and security for staff and those in
19 crisis, and
- 20 d. involve collaboration with law enforcement and
21 emergency medical services.

22 10. "Behavioral health equity" is the right to access high-
23 quality, affordable behavioral health care services and support,
24 regardless of race, ethnicity, sexual orientation, gender identity,

geography, socioeconomic status, or other characteristics. This includes addressing the needs of historically underserved populations such as:

- a. individuals from diverse racial and ethnic backgrounds, including Black, Latino, Indigenous, Native American, Asian American, and Pacific Islander communities,
- b. persons of varying faiths and beliefs, including members of religious minorities,
- c. individuals with disabilities,
- d. members of the LGBTQ community, including lesbian and gay individuals,
- e. residents of rural or remote areas, and
- f. those experiencing systemic inequities or barriers due to persistent poverty, discrimination, or inequality;

11. "Behavioral health urgent care" is an ambulatory setting that offers safe, voluntary, and time-limited services and supports to individuals experiencing behavioral health crisis. This setting is an alternative to the use of hospital emergency departments or more intensive crisis services;

12. "Community Mental Health Centers, and Certified Community Behavioral Health Clinics" are facilities as defined under Section 1913(c) of the Public Health Services Act or Section 223(d) of the Protecting Access to Medicare Act of 2014 (PAMA), and Community

1 Behavioral Health Organizations as licensed and certified by
2 relevant state agencies;

3 13. "Community outreach teams (COTs)" engage in outreach to
4 communities and community members to support a variety of needs of
5 individuals including behavioral health, physical care, housing,
6 benefits, education, and employment. COTs do not provide on-demand
7 crisis services. Instead, through outreach and engagement, COTs aim
8 to promote wellness, resilience, recovery, self-advocacy,
9 development of supports, and maintenance of community living skills.
10 COTs can work effectively alongside mobile crisis teams to prevent
11 crisis and provide wraparound supports to those in need. Some rural
12 and under-resourced communities have created teams with dual roles
13 of mobile crisis services and COTs. COTs can be especially helpful
14 for follow-up care;

15 14. "Co-response" is a collaborative approach to behavioral
16 health crisis developed in response to the need for local adaptation
17 in which first responders, sometimes including law enforcement
18 officers, are partnered with behavioral health professionals as an
19 effective way to respond to behavioral health crises and other
20 situations involving unmet behavioral health needs;

21 15. "Crisis stabilization services" reflect a range of models
22 and care to support individuals through emergent and urgent
23 behavioral health needs. Crisis stabilization services involve
24 facility-, home-, and community-based services that provide access

1 to care and stabilization for adults and youth in crisis. Crisis
2 stabilization services are delivered across a continuum of care that
3 includes no barrier, low barrier, and referral-based services;

4 16. "Emotional support lines" focus on providing connection and
5 wellness promotion. They are not hotlines; however, they are still
6 expected to have the capacity to determine if referral to a crisis
7 hotline or more intensive intervention is warranted. They are
8 sometimes referred to as helplines. Emotional support lines are
9 recognized for providing services such as active, empathetic
10 listening, safety planning, rapport building, and crisis support and
11 prevention planning. Prominent examples include Substance Abuse and
12 Mental Health Services Administration National Helpline, the Alcohol
13 and Drug Helpline, and the Alzheimer's Association 24/7 Helpline;

14 17. "Federal Communications Commission" regulates interstate
15 and international communications by radio, television, wire,
16 satellite, and cable in all fifty (50) states, the District of
17 Columbia and U.S. territories. An independent U.S. government
18 agency overseen by Congress, the Commission is the federal agency
19 responsible for implementing and enforcing America's communications
20 law and regulations;

21 18. "Health insurance" means any individual or group hospital
22 or medical-expense-incurred policy or health care benefits plan or
23 contract providing insurance against loss through illness or injury
24 of the insured. The term does not include any policy governing

1 short-term accidents only, a fixed indemnity policy, a limited
2 benefit policy, a specified accident policy, a specified disease
3 policy, a Medicare supplement policy, a long-term care policy,
4 medical payment or personal injury coverage in a motor vehicle
5 policy, coverage issued as a supplement to liability insurance, a
6 disability policy or workers' compensation;

7 19. "Law enforcement" describes a type of first-responder
8 agency and employee responsible for enforcing laws, maintaining
9 public order, and managing public safety;

10 20. "Lived experience" is personal knowledge about mental
11 health, substance use, or co-occurring mental health and substance
12 use disorders, treatment, and recovery gained through direct
13 involvement as an individual with past or current mental health or
14 substance use challenges;

15 21. "Mobile crisis team" means a multidisciplinary behavioral
16 health team that includes at least one behavioral health care
17 professional who is capable of conducting an assessment of the
18 individual, in accordance with the professional's permitted scope of
19 practice under state law, and other professionals or
20 paraprofessionals with appropriate expertise in behavioral health or
21 mental health crisis response, including nurses, social workers,
22 peer support specialists, and others, whose members are trained in
23 trauma-informed care, de-escalation strategies, and harm reduction;
24 that is able to respond in a timely manner and, where appropriate,

1 provide screening and assessment; stabilization and de-escalation;
2 and coordination with, and referrals to, health, social, and other
3 services and supports as needed; that maintains relationships with
4 relevant community partners, including medical and behavioral;

5 22. "Other behavioral health crisis hotlines" include phone,
6 text, and chat services that are not part of the 988 Lifeline
7 network but that also provide support to people experiencing
8 emotional distress or to third-party callers who are concerned about
9 another person. These hotlines typically fall into one or more of
10 the following categories:

- 11 a. topically focused to a specific type of need or
12 stressor,
- 13 b. focused on providing services to a specific
14 population, including but not limited to, a geographic
15 catchment area, and
- 16 c. targets the needs of individuals experiencing the
17 types of emotional distress that are similar in scope
18 to the 988 Lifeline but are not connected to the 988
19 Lifeline;

20 23. "Peer-operated warmlines" provide ongoing phone, text, or
21 chat support by an individual with lived experience. Calls are
22 answered by trained peers who have lived experience with the type of
23 mental health support the line is intended to provide. Peer-
24 operated warmlines are typically local to the caller's jurisdiction

1 or state, though there also are national peer warmlines geared
2 toward specific groups such as teens, older adults, and LGBTQI+
3 individuals;

4 24. "Peer crisis respites" are voluntary short-term programs
5 offering rest and peer support in a home environment for individuals
6 experiencing or recovering from a crisis;

7 25. "Respite services" are short-term relief services for
8 primary caregivers;

9 26. "State" as defined herein includes the U.S. territories
10 under 16 USC, Section 6602(9);

11 27. "State-certified peer support specialists" are individuals
12 who are employed based on his or her personal lived experience of a
13 crisis or suicide attempt and who have successfully completed a
14 state-recognized peer support training program;

15 28. "Substance Abuse and Mental Health Services Administration
16 ("SAMHSA")" is the agency within the U.S. Department of Health and
17 Human Services that leads public health efforts to advance the
18 behavioral health of the nation;

19 29. "Trauma-informed care" is a program, organization, or
20 system that:

- 21 a. realizes the widespread impact of trauma and
22 understands potential paths for recovery,
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24

- b. recognizes the signs and symptoms of trauma in clients, families, staff, and others involved with the system,
- c. responds by fully integrating knowledge about trauma into policies, procedures, and practices, and
- d. seeks to actively resist re-traumatization; and

30. "Veterans Crisis Line (VCL)" means Veterans Crisis Line maintained by the Secretary of Veterans Affairs under Section 1720F(h) of Title 38, United States Code.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 12-201 of Title 43A, unless there is created a duplication in numbering, reads as follows:

The State of Oklahoma shall designate the Department of Mental Health and Substance Abuse Services to have primary oversight over the suicide prevention and crisis service activities and essential coordination with designated 988 Lifeline Crisis Centers to provide crisis intervention services and crisis care coordination to individuals accessing the 988 Suicide and Crisis Lifeline program from any jurisdiction within Oklahoma twenty-four (24) hours a day, seven (7) days a week.

The oversight and coordination of a 988 Suicide and crisis Lifeline System will be dependent upon design, implementation, and sustainability which will be achieved through the following essential infrastructure components:

1 A. The designated 988 Lifeline Crisis Centers shall have an
2 active agreement with the 988 administrator for participation with
3 the Lifeline network;

4 B. The designated 988 Lifeline Centers shall have the authority
5 to deploy crisis and outgoing services, including mobile crisis
6 teams, and coordinate access to crisis receiving and stabilization
7 services or other local resources as appropriate and consistent with
8 any guidelines and best practices that may be established by the
9 state or 988 Lifeline administrator;

10 C. Facilitation of the ongoing care needs of persons contacting
11 the 988 Lifeline, the state or related public health authority by
12 assuring active collaborations and coordination of service linkages
13 between the designated centers, mental health and substance use
14 disorder treatment providers, local community mental health centers
15 including certified community behavioral health clinics and
16 community behavioral health centers, mobile crisis teams, and
17 community-based as well as hospital emergency departments and
18 inpatient psychiatric settings, establishing formal agreements and
19 appropriate information sharing procedures where appropriate;

20 D. The Department of Mental Health and Substance Abuse Services
21 having primary oversight of suicide prevention and crisis service
22 activities and essential coordination with designated 988 Lifeline
23 Crisis Centers, and working in concert with the 988 Lifeline, VCL,
24 and other SAMHSA-approved networks, local 24-hour local crisis

1 hotlines, the National Mental Health Hotline, and peer warmlines.
2 Other behavioral health crisis hotlines play an important part in
3 the crisis response system for the purposes of ensuring consistency
4 of public messaging about 988 services;

5 E. The designated 988 Lifeline Crisis Centers shall meet 988
6 Lifeline Program requirements and best practices guidelines for
7 operational, performance and clinical standards;

8 F. The following information and reporting are required by the
9 Department of Mental Health and Substance Abuse Services or 988
10 Lifeline Centers to the organizations indicated:

11 1. Designated 988 Lifeline Crisis Centers shall provide to the
12 State of Oklahoma including the Department of Mental Health and
13 Substance Abuse Services having primary oversight of suicide
14 prevention, data and reports on crisis service activities and
15 essential coordination;

16 2. Data related to their participation in evaluations related
17 to quality improvement activities; and

18 3. Other data and reports as required; and

19 G. The following information and reporting are required by the
20 Department of Mental Health and Substance Abuse Services or 988
21 Lifeline Centers to the organizations indicated:

22 The Department of Mental Health and Substance Abuse Services
23 will report revenue generated by the 988 telecommunications fees,
24 fund deposits, expenditures and other related information as

1 required to the Legislature and to the Federal Communications
2 Commission (FCC).

3 H. The state shall use its authority to promulgate rules and
4 regulations to allow appropriate information sharing and
5 communication between and across crisis and emergency response
6 systems for the purpose of real-time crisis care coordination
7 including, but not limited to, deployment of crisis and outgoing
8 services and linked, flexible services specific to crisis response;

9 I. The state or related public health authority shall assure
10 active collaborations and coordination of service linkages between
11 the designated centers and crisis receiving and stabilization
12 services for individuals accessing the 988 Lifeline through
13 appropriate information sharing regarding availability of services;

14 J. The Department of Mental Health and Substance Abuse Services
15 shall work to build collaboration between and among the designated
16 centers and key community stakeholders including residents,
17 community groups, peer organizations, faith organizations, business
18 owners, neighborhood leaders, and Commission members;

19 K. The designated 988 Lifeline Crisis Centers shall provide
20 follow-up services to individuals accessing the 988 Lifeline
21 consistent with guidance and policies established by the 988
22 Lifeline administrator;

23 L. The designated 988 Lifeline Crisis Centers shall meet the
24 requirements set forth by the state or 988 Lifeline administrator

1 for serving at-risk and specialized populations as identified by the
2 state or SAMHSA including, but not be limited to:

- 3 1. Children, youth and young people;
- 4 2. Racially, ethnically, and linguistically diverse
- 5 populations;
- 6 3. Rural individuals;
- 7 4. Veterans;
- 8 5. American Indians;
- 9 6. Alaskan Natives; and
- 10 7. Other high-risk populations as well as those with co-

11 occurring substance use; provide culturally and linguistically
12 competent care; and include training requirements and policies for
13 transferring a 988 Lifeline contact to an appropriate specialized
14 center or subnetworks within the 988 Lifeline network;

15 M. The state or related public health authority and designated
16 988 Lifeline Crisis Centers shall utilize technology to enhance
17 communication and coordination in the delivery of behavioral health
18 crisis services, and for data collection, analysis and sharing; and

19 N. The state or related public health authority and designated
20 988 Lifeline Crisis Centers shall take action to identify and
21 implement behavioral health crisis workforce strategies for
22 recruitment, retention, and support of a variety of behavioral
23 health professionals and a certified peer recovery workforce.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 12-202 of Title 43A, unless there is created a duplication in numbering, reads as follows:

The State of Oklahoma shall establish a statewide 988 Trust Fund for the following purposes:

1. To create and maintain a statewide 988 Lifeline system pursuant to the National Suicide Hotline Designation Act of 2020, the Federal Communication Commission's rules adopted July 16, 2020, and October 17, 2024, and the National Guidelines For A Behavioral Health Coordinated System Of Crisis Care;

2. To support or enhance 988 services, including state-designated 988 Lifeline Crisis Centers, and mobile crisis and outreach services in specified circumstances;

3. The fund shall consist of:

- a. the statewide 988 telecommunications fee assessed on users under Section 4 of this act,
- b. appropriations made by the Legislature,
- c. available federal funding that has been allocated by the state for the purposes of 988 Lifeline implementation,
- d. grants and gifts intended for deposit in the fund,
- e. interest, premiums, gains, or other earnings on the fund, and

1 f. monies from any other source deposited in or
2 transferred to the fund;

3 4. The fund shall be created and administered by the State
4 Treasurer or the Department of Mental Health and Substance Abuse
5 Services and money in the fund shall be expended to offset costs
6 that are or can be reasonably attributed to:

- 7 a. implementing, maintaining, and improving the 988
8 Suicide and Crisis Lifeline including staffing and
9 technological infrastructure enhancements necessary to
10 achieve operational and clinical standards and best
11 practices set forth by the state, the Department of
12 Mental Health and Substance Abuse Services, or 988
13 Lifeline administrator,
14 b. provision of acute behavioral health, crisis outreach,
15 and receiving and stabilization services by directly
16 responding to the 988 Suicide and Crisis Lifeline, or
17 c. personnel for the 988 Suicide and Crisis Lifeline
18 centers;

19 5. Money in the fund:

- 20 a. does not revert at the end of any state fiscal year
21 and shall remain available for the purposes of the
22 fund in subsequent state fiscal years,
23 b. is not subject to transfer to any other fund or to
24 transfer, assignment, or reassignment for any other

1 use or purpose outside of those specified in this
2 section,

3 c. is continuously appropriated for the purposes of the
4 fund,

5 d. to the extent that the 988 Suicide and Crisis Lifeline
6 Centers are fully funded, the expansion and ongoing
7 funding of mobile crisis teams and outreach teams,

8 e. to the extent that the 988 Suicide and Crisis Lifeline
9 Centers and the mobile crisis teams are fully funded,
10 remaining revenues in the Trust Fund shall be used for
11 a variety of crisis receiving and stabilization
12 services, including services provided by:

13 (1) crisis stabilization settings,

14 (2) residential settings,

15 (3) additional behavioral health stabilization
16 services and supports, and

17 (4) peer crisis respite, and

18 f. mobile crisis teams shall operate in compliance with
19 rules adopted by the Department of Mental Health and
20 Substance Abuse Services.

21 SECTION 4. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 12-203 of Title 43A, unless
23 there is created a duplication in numbering, reads as follows:
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1 The State of Oklahoma, in compliance with the National Suicide
2 Hotline Designation Act of 2020, shall establish a monthly statewide
3 988 telecommunications fee to support and sustain the 988 Suicide
4 and Crisis Lifeline centers. The fee shall be imposed on each
5 resident that is a subscriber of a commercial landline telephone,
6 mobile telephone or IP-enabled voice services, and a point-of-sale
7 988 fee on each purchaser of a prepaid telephone service, at a rate
8 that provides for the robust creation, operation, and maintenance of
9 a statewide 988 Suicide and Crisis Lifeline program and the
10 continuum of crisis services provided pursuant to the National
11 Guidelines for a Behavioral Health Coordinated System Of Crisis
12 Care.

13 A. The revenue generated by a 988 fee should be sequestered in
14 a trust as specified in Section 3 of this act to be obligated or
15 expended only in support of 988 services, or enhancements of such
16 services.

17 B. Consistent with 47 U.S.C. Section 251a, the revenue
18 generated by a 988 fee shall only be used to offset costs that are
19 or will be reasonably attributed to:

20 1. Ensuring the efficient and effective routing and answering
21 or handling of calls, chats and texts made to the 988 Suicide and
22 Crisis Lifeline and to the designated 988 Lifeline centers including
23 staffing and technological infrastructure enhancements necessary to
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1 achieve operational, performance and clinical standards and best
2 practices set forth by the state or 988 Lifeline administrator;

3 2. Personnel and the provision of acute mental health services
4 by directly responding to the 988 Suicide and Crisis Lifeline; and

5 3. For mobile crisis teams or crisis receiving and
6 stabilization services as specified in Section 3 of this act.

7 C. The revenue generated by 988 telecommunications fees may
8 only be used for expenses that are not:

9 1. Reimbursed through Medicaid, Medicare, federal or state-
10 regulated health insurance plans, disability insurers, and
11 including, but not limited to, municipal or county programs or
12 funding, not otherwise covered by another entity;

13 2. A covered service by the individual's health coverage; and

14 3. Covered because the service recipient's name and health
15 coverage information cannot be obtained or billed.

16 D. The 988 fee revenue shall be used to supplement, not
17 supplant, any federal, state, or local funding for suicide
18 prevention or behavioral health crisis services.

19 E. The 988-telecommunication fee amount shall be adjusted
20 annually based on the Consumer Price Index (CPI) which represents
21 the rate of inflation and is determined by the Bureau of Labor
22 Statistics (BLS) to provide for continuous operation, volume
23 increases, and maintenance.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 12-204 of Title 43A, unless there is created a duplication in numbering, reads as follows:

The State of Oklahoma shall implement strategies to ensure that the behavioral health crisis service system is adequately funded, including mechanisms for reimbursement of behavioral health crisis response, but not limited to:

A. Ensuring that to the extent available any necessary federal approvals are obtained and federal financial participation is available and is not otherwise jeopardized, seeking to maximize all available federal funding sources for the purposes of behavioral health crisis services and administrative activities related to 988 implementation, including:

1. Federal Medicaid reimbursement for services;

2. Federal Medicaid reimbursement for administrative expenses, including the development and maintenance of information technology; and supporting implementation of the behavioral health crisis continuum through Medicaid and the Children's Health Insurance Program (CHIP) through Section 5124 of the Consolidated Appropriations Act of 2023 (CAA, 2023); and

3. Federal grants.

B. Mandating the Oklahoma Insurance Department and Medicaid behavioral managed health care to exercise their enforcement authority by verifying reimbursement to 988 centers for medically

1 necessary behavioral health crisis services by health care service
2 plans and disability insurers, and consistent with the requirements
3 of the federal Mental Health Parity and Addiction Equity Act of
4 2008, 29 U.S.C. Sec. 1185a, the September 9, 2024, final rules
5 implementing the nonquantitative treatment limitation ("NQTL")
6 comparative analyses requirements under the Mental Health Parity and
7 Addiction Equity Act of 2008 ("MHPAEA"), in accordance with the
8 amendments made to the law in 2021, and pursuant to the No Surprises
9 Act, including 26 U.S. Code Section 9816, 29 U.S. Code Section
10 1185e, and 42 U.S. Code Section 300gg-111, and it's implementing
11 regulations.

12 SECTION 6. This act shall become effective November 1, 2025.

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